

Policy Document on Separation

Version History

Date	Version No	Created By	Revision By	Revision Description
09.02.2018	1.0	HR	-	-
01.04.2022	1.1	HR Operations Team	HR Operations Team	Definition & Process
20.03.2023	1.2	HR Operations Team	HR Operations Team	Process & Guidelines
17.09.2025	1.3	HR Operations Team	HR Operations Team	Notice Period

Document Statistics

Type of Information	Document Data
Title	Separation Policy
Document Revision	#4
Total Number of Pages	8
Document Owner	HR Operations Team
Document approved by	Executive Director
Document Reviewed by	Head of Human Resources
Document Authored by	HR Operations

Introduction:

We wish and love our employees to stay with us for longer periods. However, the company appreciates the employees' right to separate their employment at any point in time. We value our association with each employee and would like to continue our relationship even after the employee leaves the company.

Objective:

To define clear guidelines for the smooth processing of the exit of employees from the organization.

Scope:

Applicable to all on-roll employees

List of Abbreviations:

HRBP: Human Resource Business Partner
LWD: Last Working Day
LOP: Loss of pay
LWP: Leave without pay
F&F: Full & Final
HR Ops: Human Resource Operations
HRMS: Human Resource Management System
TAT: Turnaround Time

Separation types:

1. Voluntary separation
 - a. Resignation
2. Involuntary separation
 - a. Termination
 - b. Uninformed absenteeism/employee absconding
 - c. Retirement/Superannuation
 - d. Death

1. Voluntary Separation

Voluntary Separation occurs when an employee chooses to leave AMNEX and formally submits their resignation via the HRMS tool after discussing the decision with their Reporting Manager.

a. Resignation:**Resignation Process:**

- An employee must formally submit their resignation via the HRMS tool. The resignation must include all required details in the HRMS separation process flow.
- However, the employee must first discuss their intention to resign with their respective reporting

manager. Only after this formal discussion is completed the employee should submit their formal resignation.

- Reporting Manager must hold a discussion with the employee, update acceptance or rejection in the system, and confirm the Last Working Day (LWD) within one business week.

Notice Period:

- The notice period shall be 90 days, effective from the date of resignation submission.

Clearance and Documentation:

- Employees must complete all pending recoveries, claims, and submit the necessary clearance forms, exit interview forms, and handover notes digitally via the HRMS tool at least two days prior to their Last Working Day (LWD).

Non-Compliance and Consequences:

- If an employee exits the organization without serving the full notice period or obtaining clearance from all departments, HR will issue recovery notices.
- If dues are not cleared within the stipulated time, the matter will be escalated to the Legal Team for further action, including civil suits where applicable.

Full & Final Settlement:

- The Full & Final (F&F) settlement process includes calculating all pending dues such as salary arrears, leave encashment, and any other eligible components.
- The Full & Final settlement statement will be shared with the ex-employee to check the calculation and to sign the document in acceptance. Ex-employee will have to confirm HR within 3 working days of receiving F&F calculations.
- The F&F payment will be processed to the employee's bank account within 90 days from the date of acceptance.
- The full and final settlement will be released only after the employee completes all clearance formalities to the satisfaction of their reporting manager and HR. Any outstanding dues will be recovered before processing the final payment.

2. Involuntary separation

Involuntary Separation is when the organization ends an employee's employment due to business needs, performance issues, policy violations, restructuring, absenteeism, or other reasons not initiated by the employee. It also includes retirement, superannuation, or the employee's death while in service.

a. Termination:

Involuntary separation refers to the termination of an employee's services by the organization at its sole discretion, without prior notice, due to reasons including but not limited to:

- a. Violation of the organization's Code of Conduct or policies.
- b. Unsatisfactory performance, failing to meet organizational performance standards.

- c. Non-compliance with administrative orders, rules, or gross violations of organizational policies.
- d. Misconduct, unethical or immoral behavior, malpractice, indiscipline, disloyalty, theft, criminal activity, or fraud, whether within or outside the organization. Reasonable suspicion of any of these acts will also result in termination.
- e. Furnishing false or misleading information, documents, or declarations during recruitment, joining, or employment, including willful suppression of relevant information.
- f. Leakage of confidential organizational information causing potential or actual loss.
- g. Being on bench for over considerable duration without securing a project.
- h. Sexual or mental harassment.
- i. Absconding, defined as failure to report to work without any communication and not responding to HR's attempts to reach the employee for 7 continuous working days.

Management reserves the right to provide the employee an opportunity to justify their actions before a committee appointed by Management. Based on the Committee's recommendation, termination may be enforced without notice or salary in lieu, along with applicable financial recovery for losses incurred by the organization.

b. Uninformed absenteeism/employee absconding:

- An employee is considered to have absconded when they leave the organization without submitting a formal resignation or failing to follow the proper separation process.
- An employee who is continuously absent for more than 7 working days without intimation will be treated as absconding.

Process:

- HRBP will track attendance and issue the first Absconding Warning Letter via a HR's email address (hr@amnex.com), and maintain a copy in the employee's personal file.
- If no satisfactory response is received within the next 7 working days, a second warning letter will be issued.
- Failure to respond to the second warning will trigger the formal process for closure of employment, including notifying IT, Admin, Finance, and HR Operations for necessary action.
- If a concerned employee responds to the absconding letter with satisfactory response & returns to work, the process will be considered closed.
- No relieving documents or experience letters will be issued and F&F settlement will not be processed in the event of absconding.
- Any outstanding dues will be recovered through the legal process if necessary.

c. Retirement:

Employees will retire upon reaching the age of 58 years, as per the applicable state law.

- The last working day will be the last day of the month in which the employee reaches the retirement age.
- HRBP will intimate, in writing to the retiring employee & his reporting manager at least 3 months in advance from the date of retirement.
- Full and final settlement will be processed along with retiral benefits such as PF and Gratuity as per applicable rules.

- Management may, at its discretion, extend employment beyond retirement or offer a contract-based engagement under mutually agreed terms.

d. Death in Service:

In the unfortunate event of an employee's death while in service, the HR department will assist in processing claims under the Insurance Policies as applicable.

- The nominee or legal heir will receive all eligible dues including salary, leave encashment, and other pending payments as of the last working day.
- The process from clearance to settlement will be managed by the HR department.

Guidelines for all types of separation:**Notice Period:**

- Employees must serve the notice period as per band eligibility, unless waived at the organization's discretion. For employees on probation, the notice period is fixed at 1 month.
- Accumulated leave cannot be used to offset the notice period.
- Notice period salary will be calculated based on the last drawn basic salary.
- In cases where the organization decides to terminate the employee for reasons other than ethical misconduct, the notice period payment will be made as agreed on a case-by-case basis, jointly decided by the Business Unit (BU) Head, HR Head, and Management.

Salary Hold:

- Salary may be held up to 45 days pending clearances and recovery.
- For employees on probation, salary hold will be for 30 days subject to no outstanding dues.

Shortfall in Notice Period:

- Any unapproved leaves or LWP during the notice period will extend the notice period or be deducted from F&F.

Relieving Documents:

- Issued only after satisfactory completion of exit formalities, including Exit Interview, Clearance Forms, Handover Report, and Employee Confidentiality Agreement.
- No experience or relieving letter will be issued if contractual obligations remain unfulfilled.

Handover of Responsibilities & Knowledge Transfer:

- Employees must hand over all responsibilities, organizational materials, documents, and assets to the designated person before their Last Working Day. The handover must be documented in writing. Relieving and experience letters will be issued only after successful clearance and verification.

Treatment of Leaves:

- Employees are not allowed to take any leave during the notice period, except for Sick Leave (SL) with prior approval. A medical certificate is mandatory if SL exceeds 3 consecutive days.
- Any leave (approved or unapproved) or LWP taken during the notice period will be treated as a shortfall and will extend the notice period accordingly. Unapproved leave during notice will be deducted from the Full & Final (F&F) settlement.
- Accumulated Earned Leave, including prorated leave for the year, will be encashed at the last drawn basic salary and paid along with the F&F settlement, except in cases of termination (including death case).
- Employees are eligible for Birthday, Anniversary, and Bereavement leaves in separation cases (except termination).
- In the event of separation, if an employee has availed leave in excess of their monthly entitlement (based on the annual allocation of 7 Sick Leaves and 7 Casual Leaves provided at the beginning of the year), the excess leave will be deducted from the Full & Final (F&F) settlement.

Recoveries from the outgoing employees:

Recoveries may include, but are not limited to:

- Pending travel advances
- Notice pay in lieu of shortfall in the notice period
- Unaccounted Business expenses
- Outstanding loans & advances
- Any organization assets not returned
- Excess Payment (due to miscalculation)
- Joining expenses, house shifting, transfer expenses if employment ends before one year.
- Any amount pertaining to a loan taken, bond, or undertaking with the organization will be recovered in full if an employee leaves
- Any other recovery as approved by BU Head and Finance Head.

HR will manage all employee separations in accordance with relevant policies, including performance, harassment, integrity, and absconding cases. HR is responsible for recovery of company assets, loans, and advances before exit formalities. Relieving documents may not be issued in cases of involuntary separation or policy violations.